

ENTITLED: “AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PARCEL(S) OF LAND BEING SITUATED IN THE SE1/4 OF SECTION 11, AND IN THE NE1/4 OF SECTION 14, T.13N., R.67W., 6TH P.M., LARAMIE COUNTY, WYOMING (GENERALLY LOCATED AT INTERSTATE 25 AND WEST COLLEGE DRIVE)”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That the City of Cheyenne has initiated an annexation under W.S. 15-1-404 for a parcel(s) of land being situated in the SE1/4 of Section 11, and in the NE1/4 of Section 14, T.13N., R.67W., 6th P.M., Laramie County, Wyoming (generally located at Interstate 25 and West College Drive); and
- (b) That an accurate annexation map of said property accompanies this ordinance, said map prepared by John Steil, a Professional Land Surveyor, registered in the State of Wyoming, PLS Number 2500; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned P – Public, PUD – Planned Unit Development, and CB – Commercial Business, by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, the governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 3. That all of the real property described herein be an addition to the City of Cheyenne, Laramie County, Wyoming, and the same hereby is annexed as zone District P – Public, PUD – Planned Unit Development, and CB – Commercial Business, and shall become a part thereof.

Section 4. That the City Clerk is directed to file an executed copy of the annexation ordinance and map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to affix said property onto the official City Map.

Section 5. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 6. That this ordinance shall be in full force and effect upon its publication.

FIRST READING:_____

SECOND READING:_____

THIRD AND FINAL READING:_____

RICHARD L. KAYSEN, MAYOR

(SEAL)

CAROL INTLEKOFER, CITY CLERK

published:_____

ANNEXATION REPORT & STAFF REPORT

Overland Trails Summation

Annexation

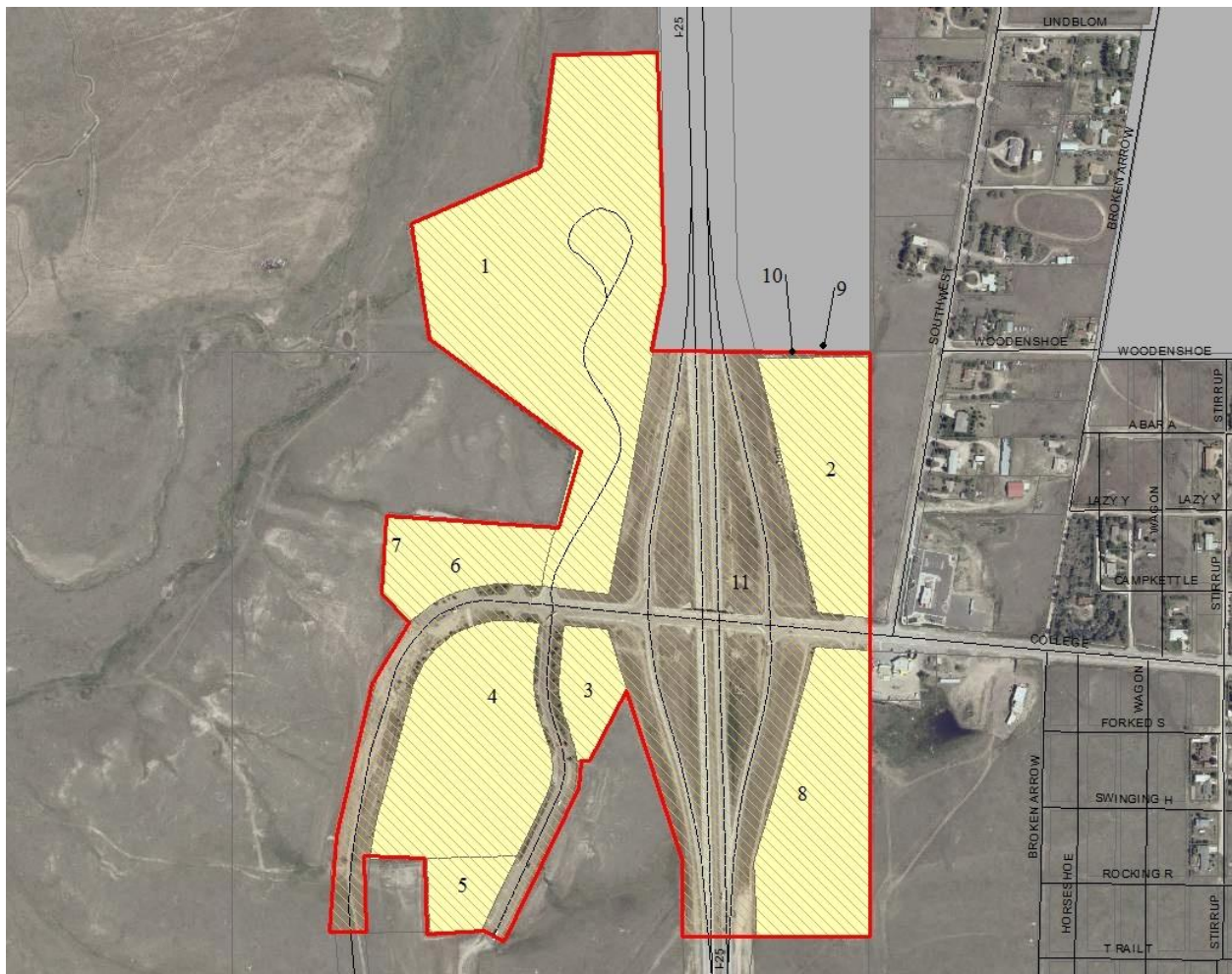
CASE NUMBER: A-11-01 **FILE CODE:** OVT-A

PUBLIC HEARING: April 11, 2011

RESOLUTION ADOPTED: April 25, 2011 (unanimous)

REQUIRED DOCUMENTS: All required documents have been submitted and reviewed by staff.

RECOMMENDATION: Adoption of Ordinance to Annex.



ANNEXATION REPORT & STAFF REPORT

Overland Trails Summation

Annexation

CASE NUMBER: A-11-01 **FILE CODE:** OVT-A

OWNERS:

1. Wyoming State Hwy Commission (1520 Etchepare Circle)
2. Diamond Shamrock (3306 W. College Drive)
3. Flying J, Inc. (2245 Etchepare Circle)
4. CFJ Plaza Company II LLC (2250 Etchepare Circle)
5. Ridge Enterprises LLC (2400 Etchepare Circle)
6. McDonalds Corporation (4000 W. College Drive)
7. Preiss Corporation (4000 W. College Drive)
8. Loves Travel Stops and Country Stores (3305 W. College Drive)
9. Total Petroleum
10. Swan Ranch
11. Adjacent right-of-way

AGENT: City-initiated

REQUEST: Annexation to the City of Cheyenne

LOCATION:

- (1) Legal Description: Lot 1, Block 1, EMJ Subdivision; Lot 1, Block One, Overland Trails First Filing; Lot One, Block Two, Overland Trails Second Filing; Lot 1, Block 3, Overland Trails Third Filing; Lot 1, Block 4, Overland Trails Fourth Filing; Tract A, Overland Trails Fifth Filing; Portions of West College Drive, Clear Creek Parkway, Etchepare Circle, Interstate 25 and unplatted portions of the Northeast Quarter (NE¼) of Section 14, Township 13 North, Range 67 West; and an unplatted portion of the Southeast Quarter (SE¼) of Section 11, Township 13 North, Range 67 West, all in the 6th P.M., Laramie County, Wyoming.
- (2) General Location: Located at I-25 and College.
- (3) Address: Various
- (4) Map Page: D-116, 130

CURRENT ZONING: P, PUD, CB

PROPOSED ZONING: No change

EXISTING LAND USES: Hotel, restaurant, truck stops, visitors center, truck repair shop, right-of-way (+/- 114.24 total acres)

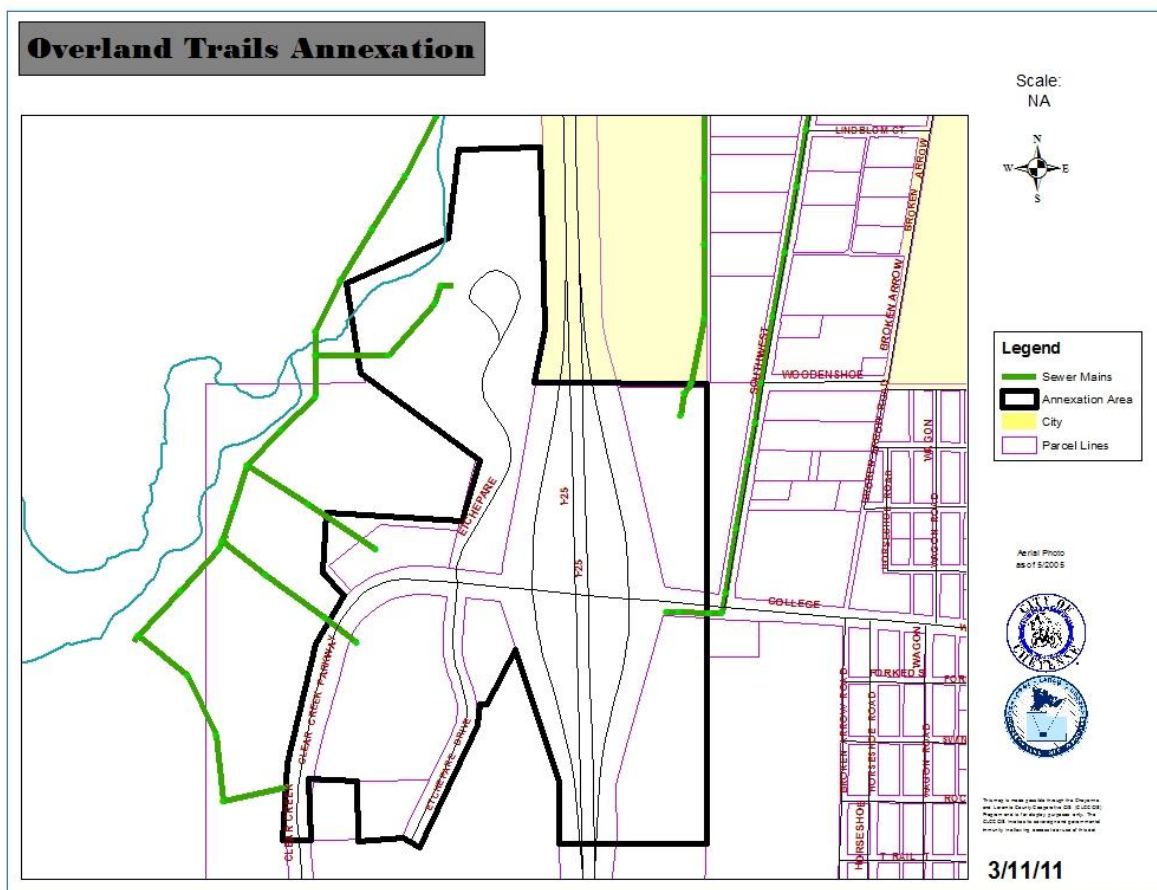
PROPOSED LAND USE: No change

COMPREHENSIVE PLAN DESIGNATIONS: The land-use plan in PlanCheyenne indicates several designations for the area: *Public and Quasi-Public* for the visitors center; *Commercial Business* where the three truck stops, hotel, and truck repair shop are located, and *Mixed Use-Employment* where McDonalds is.

This annexation area and areas beyond are projected for Urban Growth.

SURROUNDING	LAND USE:	ZONING	ANNEXATION STATUS
North:	Vacant	PUD	City
South:	Vacant	PUD	County
East:	Commercial and vacant	CB	County
West:	Vacant agricultural	PUD	County

DESCRIPTION OF SITE AND SURROUNDINGS:



- **Annexation Area** – This annexation area contains the Comfort Inn hotel, McDonalds, three truck stops (Flying J, Love's, and Diamond Shamrock), the state-owned visitors center, Ridge Equipment and Truck Repair, and right-of-way.

- Properties to the east: Vacant parcel of unplatted land in Laramie County, 2 acres; fireworks stand in Laramie County, 1.29 acres; vacant parcel of unplatted land in Laramie County, 45 acres
- Properties to the west: Vacant parcels of unplatted land in Laramie County, 2,753 and 1,913 acres
- Properties to the north: Vacant parcels of unplatted land in Laramie County, 68 and 2,753 acres
- Property to the south: Vacant parcel of unplatted land in Laramie County, 1,913 acres

CURRENT STATUS: The property is developed as the Comfort Inn hotel, McDonalds, three truck stops (Flying J, Love's, and Diamond Shamrock), the state-owned visitors center, Ridge Equipment and Truck Repair, and right-of-way.

Improvements: The landowner will be required to comply with Chapter 1.16 of the Cheyenne City Code, which includes provisions for offsite improvements. Immediate improvements to the property are not required. Subsequent development actions on this property may trigger additional improvements to be made. The area is currently served by sanitary sewer (BOPU). Water service is over one mile away to the northeast. The City and Board of Public Utilities have plans to construct a water transmission line approximately one half mile south of the proposed annexation. Public streets built to an urban section are in place.

Platting: The area includes both platted and unplatted land. Plats include EMJ Subdivision at the southeast corner of I-25 and College (Love's), and Overland Trails, 1st, 2nd, 3rd, 4th, and 5th Filings at the southwest corner of I-25 and College and part of the northwest corner (McDonalds). Unplatted properties include the State property at the northwest corner of I-25 and College and the Diamond Shamrock and adjacent parcels at the northeast corner of I-25 and College.

Zoning: The property is currently zoned P, Public, PUD, Planned Unit Development, and CB, Commercial Business.

REVIEWING AGENCY AND REVIEWERS COMMENTS:

City Fire Department:

Those requesting annexation will need to provide a technical opinion report on all existing facilities, structures and operations in the proposed area of annexation. Structures, facilities or operations connected to private water supplies are of unknown quality or serviceability and will require evaluation by a Fire Protection Engineer. Further, the report shall address overall compliance with the 2006 International Fire Code.

Reference: IFC Section 104.7.2 Technical assistance.

To determine the acceptability of technologies, processes, products, facilities, materials and uses attending the design, operation or use of a building or premises subject to inspection by the fire code official, the fire code official is authorized to require the owner or agent to provide, without charge to the jurisdiction, a technical opinion and report. The opinion and report shall be prepared by a qualified engineer, specialist, laboratory or fire safety specialty organization acceptable to the fire code official and shall analyze the fire safety properties of

the design, operation or use of the building or premises and the facilities and appurtenances situated thereon, to recommend necessary changes. The fire code official is authorized to require design submittals to be prepared by, and bear the stamp of, a registered design professional.

[Planning is working with Fire Chief Martin and Division Chief Narva to assure the Fire Department has the information they will need to respond to this area once annexed and at this point the Fire Department is satisfied to work on this issue while the annexation is in process. Additional updates will be provided as warranted by any findings by the Fire Department.]

City Surveyor:

1. The "Landowners" for the two parcels of land located in the NE1/4 of Section 14 under the Laramie County Assessors records as:
 - a. State PIN Number 13671410000300 (Total Petroleum, Inc.)
 - b. State PIN Number 13671410000099 (Swan Ranch, LLC)Have been identified, but are delineated incorrectly as projecting into the I-25 right of way. This needs to be corrected.
2. The WYDOT properties located north of West College Drive and West of I-25 should also be labeled with the record boundary data per the deed of record (Bk.1092, Pg.1163).
3. The lines of the "UNPLATTED" area on this map in Wyoming State Highway Commission ownership represent the surveyed lines of apparent occupation, but do not adequately represent boundaries or legal descriptions of record in accordance with the requirements of the annexation statutes under **W.S. 15-1-401 thru 15-1-423**. The legal description of record under the Quit Claim Deed recorded in BK.1092, Pg.1163, **is not** in agreement with the legal description provided on this map. Therefore, in my professional opinion, the boundaries are uncertain or incapable of ascertainment (at present).

W.S. 15-1-413 Survey of boundaries; when and how to be made; presumption once recorded.

(a) If the boundaries of any city or town are uncertain or incapable of ascertainment and upon the change in boundaries of any city or town pursuant to any annexation under this chapter, the governing body, by ordinance, shall provide for a survey thereof. When the survey is made, the boundaries shall be marked by substantial monuments, and the person making the survey shall report to the governing body describing the boundaries by metes and bounds. The description as nearly as possible shall refer, if upon surveyed lands, to the corners or lines of the United States surveys. The person making the survey shall also file with the city or town clerk the field notes of his survey. The city or town clerk shall then file a copy of the report and a copy of the field notes certified by the mayor and clerk with the county clerk for the county in which the city or town is located.

(b) Any survey or perambulation made and recorded as provided in subsection (a) of this section is presumptive of the boundaries of the city or town, and any copy thereof certified by the county clerk shall be received in evidence in any court of this state.

(c) The city or town clerk shall file a copy of an official map or legal description designating the geographical boundaries of the city or town or the changes to its geographical boundaries with the department of revenue, the county assessor and the county clerk in the county or counties within which the city or town is located in accordance with the department's rules adopted pursuant to W.S. 39-11-102(c)(xxiv) regarding tax districts, with any special district affected by the boundary change and as follows:

4. With the known discrepancies between the legal description of record under the Quit Claim Deed (BK.1092, Pg.1163) and the attempt to further depict and accurately survey the lines of occupation under this survey, it is in my opinion very clear that the true boundaries are most certainly "UNCERTAIN". In my opinion, the Statute implies that the survey is to be used in accomplishing identification and resolution of these discrepancies. I believe these uncertainties need to be resolved prior to approval of this annexation. Or in the very least (not my recommendation), a formal "REPORT" specifically identifying and describing the uncertainties of the boundary identification to be recorded with this annexation map. I have not seen such a report. Otherwise, with the recording of this annexation map, the City is knowingly and willfully certifying to the creation of a conflict of legal descriptions in the public record, which may or may not eventually change the City boundaries with resolution of the discrepancies.
5. In the "CERTIFICATE OF SURVEYOR" Mr. Steil does not state that this Annexation Map was prepared from "... a survey made by him". However, in the "LEGEND" he shows survey monuments having been set by himself. The "CERTIFICATE OF SURVEYOR" should be amended accordingly.
6. On page 6 and on page 8 of the BUILDING AND DEVELOPMENT OFFICE - ANNEXATION INFORMATION handout the following policy requirement is recited "...a plat of all the real property described herein has previously been filed with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming." Has this policy been waived? If so, shouldn't it be noted on the Annexation Map along with any conditions attached? Historically we have granted such waivers for "UNPLATTED" lands with the condition that the areas be platted prior to development. However, all of these "UNPLATTED" areas are already developed and we would have no means of enforcing a platting requirement unless the area development changes.

Response from Urban Planning to City Surveyor's comments:

1. The map has been amended to address this comment.
2. This is addressed by the D1 note in the legend and the book and page notations on the map.

3. The annexation boundaries have been appropriately established and all landowners have been notified. In addition, staff is using a licensed professional land surveyor with extensive experience creating annexation maps in Wyoming and Cheyenne.
4. The annexation needs to be processed with the deeds in place as they are written. The annexation map depicts the area to be annexed.
5. The map has been amended to address this comment.
6. The application states that it is for “previously platted land only.” The City routinely annexes unplatted land. Also this is a City initiated annexation, thus the customary “application” is not applicable.

Board of County Commissioners:

Is this contiguous or adjacent? This appears to be a forced annexation by the City of Cheyenne.

Urban Planning:

As stated previously, the subject area is designated *Public and Quasi-Public, Commercial Business, and Mixed Use-Employment* on the PlanCheyenne land-use map and contains urban development.

Environmental Health:

Standards & Regulations:

Laramie County Small Wastewater System Regulations

201 Area Facilities Management Plan

Staff Comments:

All existing development appear to be serviced by the public wastewater system. Generally, wastewater system permits can not be issued in this area without exceptions being granted by the Laramie County Commissioners and the Cheyenne City Council.

AGENCIES RESPONDING WITHOUT COMMENT: BOPU, County Assessor, Police Department, WYDOT, Traffic Department, MPO, School District 1, Parks & Recreation, Engineering Tech Branch.

AGENCIES NOT RESPONDING: Assistant City Engineer, Bresnan Communications, Cheyenne Light, Fuel & Power, City Engineer, County Attorney, County Planning, County Public Works, Department of Energy, Emergency Management, Public Works, Qwest, Sheriff's Office.

OTHER COMMENTS RECEIVED: None

ANNEXATION ELIGIBILITY DATA/ANALYSIS: Before any territory is eligible for annexation, the governing body of any city or town, at a hearing as provided in W.S. 15-1-405, shall find that:

- 1) The annexation of the area is for the protection of the health, safety, and welfare of the persons residing in the area and in the city or town. **Findings:** The area to be annexed does not include any residents. Future required connections to City services in the Urban Area helps prevent overuse of the aquifer and possible contamination from

septic systems. Urban densities are most appropriately served by full-time professional fire services and City police.

- a. Including properties that are already served by some City services in the City's tax base allows for more equitable cost sharing among all City residents.
 - b. Full-time professional fire and police departments, which are available in the City, increase the potential of quicker emergency responses, which is a benefit to health, safety, and welfare.
- 2) The urban development of the area sought to be annexed would constitute a natural, geographical, economical, and social part of the annexing city or town. **Findings:** The property is approximately 14.76% contiguous to the existing City boundary. The site is located within the PlanCheyenne comprehensive plan area, which includes the following land use designations on the future land use plan: *Public and Quasi-Public* for the visitors center; *Commercial Business* where the three truck stops, hotel, and truck repair shop are located, and *Mixed Use-Employment* where McDonalds is.
 - a. PlanCheyenne, which was adopted by the City of Cheyenne and Laramie County, contemplates urban development in this area.
 - b. Urban Development at interchanges is a common occurrence in urban areas. In addition, this area is near major transportation hubs with both the intersections of I-25 and I-80 and BNSF and UP Rail nearby. Urban development is expected near such major transportation hubs. This area is approximately 2 miles from the City's original downtown. By comparison, the City has already grown substantially further than two miles to the north and east. Balancing new investment and growth in all directions is generally desirable both economically and socially.
 - c. The City and Board of Public Utilities have plans to construct a water transmission line approximately one half mile south of the proposed annexation. This infrastructure will accommodate planned growth of the City to the south beyond the proposed annexation area.
- 3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to the residents of the city or town shall, within reason, be available to the area proposed to be annexed. **Findings:** The City has the capacity to serve more people and businesses with its water and sewer system. This area can be supported by City services, such as fire protection, police protection, and garbage collection. The proximity to existing urban development is an opportunity to provide City services in a fiscally responsible manner.
 - a. Multiple connections to the City's sanitary sewer system have already been made within the annexation area and the properties have already agreed to be annexed via outside user agreements.
 - b. The sewer line extending to these sites was oversized in anticipation of additional development in this area to occur in the City. Annexation of these properties was anticipated when the agreements to annex were executed.

- c. At present time, the City has the capacity to serve more people with its water and sewer system. More specifically, increasing the number of users increases efficiency and thereby keeps costs to a minimum. The proximity of this site to existing urban development increases the likelihood that maintenance of new infrastructure in this area will be feasible for the City to maintain. PlanCheyenne contemplates urban development in this area and this area is located in the 201 boundary, both of which require new development to be connected to City sewer.
- 4) The area sought to be annexed is contiguous with the annexing city or town, or the area meets the requirements of W.S. 15-1-407. **Findings:** The property is approximately 14.76% contiguous with existing City limits.
- 5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. **Findings:** Franchises are in place to serve this property.
- 6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S 15-1-405 (a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date, and location of the public hearing required by W.S. 15-1-405 (a). **Findings:** The required information was sent March 1, 2011, to meet the requirement of this provision.

ANNEXATION REPORT DATA: In compliance with 15-1-402 (c) the following information is provided:

- (i) A map is not required for this report based on the absence of exercising the authority granted under W.S. 15-3-202 (b) (ii).
- (ii) The total estimated cost of infrastructure improvements required of the landowners by the City related to the annexation is approximately \$0. Additional improvements may be required with subsequent development actions.
- (iii) Services customarily available to City residents include water, sewer, sanitation, police and fire protection. Sewer service is available to the property currently; water lines must be extended to the area in order to obtain City water service. Sanitation, police and fire services will be available upon annexation. These services are provided upon application and payment to the Board of Public Utilities, with sanitation services occurring concurrently. Provision of these services is initiated by the property owner.
- (iv) Fees for water, sewer, and sanitation services are a variable amount for commercial units, based upon volume. Tap fees and for commercial units tap fees vary based on the size of the tap required.
- (v) The current property tax mill levy imposed is 66.00 and projected property tax mill levy imposed by the city is 71.00.
- (vi) The infrastructure described in (ii) above, includes improvements required within the existing boundaries of the municipality to accommodate the proposed annexation.

Encl: Annexation Ordinance

cc: File